

7. DISPUTE RESOLUTION

7.1 COMMON DISPUTES

Types of Disputes

Payment Disputes:

- **Shipper refuses to pay (claims service not delivered)**
- **Driver claims underpayment**
- **Hidden fees or charges**
- **Currency conversion disagreements**
- **Delayed payment release**

Service Quality Disputes:

- **Late delivery (missed deadline)**
- **Cargo damage or loss**
- **Incomplete delivery (missing items)**
- **Unprofessional conduct**
- **Poor communication**

Cargo Disputes:

- **Load description mismatch**
- **Weight/volume discrepancies**
- **Special handling not followed**
- **Loading/offloading issues**
- **Packaging inadequate**

Booking Disputes:

- **Job cancellation (by either party)**
 - **No-show (shipper or driver)**
 - **Route changes mid-delivery**
 - **Additional stops not agreed**
 - **Price negotiation breakdown**
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7.2 DISPUTE RESOLUTION PROCESS

Step 1: In-App Dispute Filing

Either Party Can Initiate:

How to File:

- 1. Open completed or active job**
- 2. Click "Report Issue" or "Dispute"**
- 3. Select dispute category:**
 - **Payment issue**
 - **Service quality**
 - **Cargo problem**
 - **Booking issue**
 - **Other**
- 4. Provide details:**
 - **Clear description of issue**
 - **Upload supporting evidence:**
 - **Photos**
 - **Documents**
 - **Messages/conversations**
 - **Third-party statements**
 - **Desired resolution:**
 - **Full refund**
 - **Partial refund**
 - **Compensation**
 - **Apology**
 - **Other**
- 5. Submit dispute**

Automated Response:

 **DISPUTE FILED**

Reference: DSP-2025-001234

Job: PT-2025-001234

Filed by: John Moyo (Shipper)

Issue: Cargo damage

Your dispute has been received.

NEXT STEPS:

- 1. Other party notified (within 2 hours)**
- 2. Evidence review (24 hours)**
- 3. Mediation call scheduled (48 hours)**
- 4. Resolution target: 5-7 days**

You can track progress in the app.

Questions? Contact support:

 **+263 77 XXX XXXX**

 **disputes@palmrent.co.zw**

Step 2: Initial Review

Platform Actions (Within 24 Hours):

1. Dispute Triage:

- **Assign severity level:**
 - **Low: <USD \$100, minor issue**
 - **Medium: USD \$100-1,000, moderate impact**
 - **High: >USD \$1,000, serious issue**
 - **Critical: Safety, fraud, legal concern**
- **Assign case manager**

- **Review all available evidence:**
 - **GPS data**
 - **Photos (pickup, transit, delivery)**
 - **POD and signatures**
 - **Messages between parties**
 - **Payment records**
 - **Insurance policy (if applicable)**

2. Notify Other Party:

- **SMS and email notification**
- **24 hours to respond**
- **Request their side of story**
- **Ask for additional evidence**
- **Explain dispute process**

3. Hold Funds (If Applicable):

- **Payment frozen until resolution**
- **Both parties notified**
- **Timeline for resolution provided**

Step 3: Mediation

Palmtrent Mediation Team:

Mediation Call (Within 48-72 Hours):

- **Conference call with both parties**
- **Neutral mediator facilitates**
- **Each party presents case (10 mins each)**
- **Evidence reviewed together**
- **Clarifying questions asked**
- **Discussion of resolution options**
- **Attempt to reach agreement**

Possible Outcomes:

Outcome 1: Amicable Settlement

- Both parties agree on resolution
- Terms documented
- Payment adjusted (if needed)
- Ratings updated (if relevant)
- Case closed
- Satisfaction survey sent

Outcome 2: No Agreement

- Escalate to formal arbitration
- Independent arbitrator assigned
- More detailed investigation
- Binding decision made

Outcome 3: Need More Evidence

- Request additional information
- Site inspection (if needed)
- Third-party verification
- Extended timeline
- Follow-up mediation

Step 4: Formal Arbitration

If Mediation Fails:

Arbitration Process:

1. Independent arbitrator appointed
 - Not employed by Palmtrent
 - Industry experience
 - Legal background (preferred)
2. Detailed investigation:
 - Review all evidence thoroughly
 - Interview witnesses (if any)

- Inspect cargo/vehicle (if possible)
- Consult experts (technical, legal)
- Request police reports (if relevant)
- 3. Both parties submit written statements
- 4. Arbitrator makes binding decision:
 - Full judgment with reasoning
 - Financial resolution determined
 - Non-financial remedies (apologies, etc.)
 - Platform actions (rating adjustments)
 - Timeline: 7-14 days
- 5. Decision enforced by platform:
 - Payment adjusted automatically
 - Ratings updated
 - Account restrictions (if warranted)
 - All parties notified

Step 5: Appeals

Limited Appeal Rights:

- Only for procedural errors
- New evidence discovered
- Arbitrator conflict of interest
- Material misrepresentation

Appeal Process:

- Must file within 7 days
 - USD \$50 appeal fee (refunded if successful)
 - Senior management review
 - Final decision within 14 days
 - No further appeals
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7.3 DISPUTE OUTCOMES

Financial Resolutions

Full Refund to Shipper:

- **Service not delivered at all**
- **Gross negligence by driver**
- **Fraud or misrepresentation**
- **Total cargo loss (with insurance claim)**

Partial Refund:

- **Late delivery (sliding scale based on delay)**
- **Minor cargo damage**
- **Incomplete service**
- **Inadequate communication**
- **Typical: 10-50% of total cost**

Payment to Driver:

- **Service delivered as agreed**
- **Shipper's claims unfounded**
- **Shipper unreasonable expectations**
- **Full payment plus compensation for trouble**

Split Decision:

- **Both parties partially at fault**
- **Costs shared proportionally**
- **Example: 70/30 split**

No Financial Change:

- **Dispute unfounded**
- **Insufficient evidence**
- **Both parties satisfied with mediation outcome**

Non-Financial Resolutions

Apologies:

- **Formal written apology**
- **Published in platform (if agreed)**
- **Included in user rating**

Rating Adjustments:

- **Remove unfair negative rating**
- **Add context to rating**
- **Warning note on profile**

Account Actions:

- **Warning (first minor offense)**
- **Temporary suspension (repeated issues)**
- **Permanent ban (serious violations)**
- **Additional verification required**
- **Reduced platform privileges**

Process Improvements:

- **Update terms and conditions**
- **Improve communication features**
- **Add new safety measures**
- **Enhance training materials**

7.4 PREVENTION MEASURES

Proactive Dispute Prevention

Clear Communication:

- **Detailed booking requirements**
- **Photo documentation mandatory**
- **Real-time updates throughout journey**
- **In-app messaging (monitored)**
- **Automated reminders and alerts**

Verification Systems:

- Identity verification (both parties)
- Vehicle inspection photos
- Load verification at pickup
- Condition documentation
- GPS proof of delivery

Education:

- User guides and FAQs
- Video tutorials
- Dispute case studies (anonymized)
- Best practices articles
- Webinars for corporate clients

Insurance:

- Encourage insurance adoption
- Make claims process easy
- Partner with reliable insurers
- Fast claim settlements
- Insurance reduces disputes significantly

Ratings System:

- Transparent and fair
- Both parties rate each other
- Detailed category ratings
- Written reviews (optional)
- Pattern detection (repeat offenders)

Platform Monitoring

Early Warning System:

- AI detects potential issues:
 - Excessive delays
 - Route deviations

- **Communication gaps**
 - **Unusual patterns**
- **Proactive outreach by support team**
- **Prevent escalation before dispute filed**

Quality Control:

- **Random delivery audits**
- **Customer satisfaction surveys**
- **Driver performance tracking**
- **Shipper behavior monitoring**
- **Continuous improvement based on data**